

		section 3294.” (<i>Brousseau v. Jarrett</i> (1977) 73 Cal.App.3d 864, 872.) The act of willfully becoming intoxicated and operating a motor vehicle alone may support a claim for punitive damages. (<i>See Taylor v. Superior Court</i> (1979) 24 Cal.3d 890, 895-896.) But a plaintiff must plead and establish that defendant’s conduct “was such as to amount to a conscious disregard of the safety of and probable injury to other persons.” (<i>See Dawes v. Superior Court</i> (1980) 111 Cal.App.3d 82, 87.) In <i>Taylor</i>, the court held that allegations of the defendant’s operation of an automobile under the influence disclosed a conscious disregard of the probable dangerous consequences, where defendant was an alcoholic who was aware of the seriousness of his problem, of his tendency to drive while intoxicated, and of the dangerousness of his driving while in such condition. Likewise, the court in <i>Dawes</i> found that the trial court had abused its discretion in striking punitive damages claim, where the complaint alleged the defendant was driving while intoxicated in a manner where risk of injury was probable. (<i>Dawes v. Superior Court</i> (1980) 111 Cal.App.3d 82, 86.) Specifically, the complaint in <i>Dawes</i> alleged the intoxicated defendant zigzagged in and out of traffic in excess of 65 miles per hour in a 35-mile per hour zone, in crowded beach recreation area at 1:30 on a weekend afternoon. (<i>Ibid.</i>) The only fact alleged in the complaint is the fact that Carillo was intoxicated while operating the vehicle at the time of the accident. There are no additional facts such as those presented in <i>Dawes</i> and <i>Taylor</i> which would serve as a basis for a punitive damages award. Plaintiff has pointed to additional facts not included in the Complaint in the opposition, such as the traffic collision report. Accordingly, there is a reasonable possibility Plaintiff could adequately plead a basis for punitive damages if granted leave to amend. Moving Defendant shall provide notice.
5	Kiani vs. Koffey 2025-01484637	Motion to Seal (ROA 157) Plaintiff Joe Kiani’s Motion to Seal is GRANTED. (Cal. Rules of Court, Rule 2.551, subd. (b).) The Court finds that Moving Party has made a sufficient factual showing under Cal. Rules of Court, Rule 2.550, subd. (d) to justify sealing: (1) Moving Party has shown that the records he seeks to seal consist of, or directly reference, privileged and private

		attorney-client communications, including engagement letters and billing records for legal services. (2) Moving Party has shown an overriding interest that supports sealing of records (see <i>NBC Subsidiary (KNBC-TV), Inc. v. Superior Court</i> (1999) 20 Cal.4th 1178, 1222, fn. 46 [recognizing inter alia an overriding interest in protection of trade secrets and protection of information within the attorney-client privilege]; <i>Universal City Studios, Inc. v. Superior Court</i> (2003) 110 Cal.App.4th 1273, 1286 [recognizing that confidential and sensitive business and financial information is ordinarily a matter appropriate for sealing].) (3) Publication of these records would prejudice Moving Party by publicly disclosing attorney-client communications, attorney work-product, and sensitive financial information. (4) Moving Party proposed a narrowly tailored means to protect the overriding interest by redacting only those portions of the memorandum that constitute attorney-client communications and attorney work product and references the substance of the same. (5) Moving Party has shown there is no less restrictive means of protecting the overriding interests identified above. The clerk is directed to file the unredacted Reply in Support of the Motion to Disqualify Attorney of Record (ROA 158) UNDER SEAL. The redacted versions of the Reply (ROA 148) shall be accessible on the public record of this proceeding. Plaintiff to give notice.
6	Kiani vs. Masimo Corporation 2026-01546059	Petition to Compel Arbitration No tentative.
7	Kim vs. Byun 2026-01579317	Motion to Consolidate Plaintiffs Myung Soo Kim and Sun Hee Kim's motion to consolidate this action with the Small Claims action Case No. 30-2025-01517200 is DENIED. Consolidation is not appropriate as the Small Claims action has already been to trial and is now pending appeal. (Code Civ. Proc., § 116.390, subd. (b).) The case of <i>Acuna v. Gunderson Chevrolet, Inc.</i> , (1993) 19 Cal. App. 4th 1467, is on point. The appellate court held that the superior court lacked jurisdiction to make a consolidation order. The court affirmed the trial court's dismissal of the consolidation attempt and transferred the matter back to the small claims court.